

AFFIDAVIT OF PERCIPIENT WITNESS

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Matter: Cruller v. Prine — Count II

Affiant: Odile Cruller

Concerning: Dermot A. Cruller

1. Basis of knowledge

I am over the age of eight and competent to testify to the matters stated below. Each is within my personal knowledge. I keep a dated notebook and have done so continuously throughout the period described.

2. The offer

On **1 April 2025** I was in the yard. I saw the neighbor speak to my father across the hedge and hand him a doughnut. I heard the neighbor describe the doughnut. He used the word “neat.” He did not use the word “soul,” and he did not say that anything was written inside the doughnut.

I wrote the exchange down that evening. The entry is dated and has not been altered.

3. The interval

Between **1 April 2025** and **14 April 2026** the remainder of the doughnut was in our refrigerator. During that period my father did not mention a soul, a contract, or the neighbor’s aspect. My notebook records no such conversation, and I would have recorded one.

4. The completion

On **14 April 2026** my father ate the remainder. He said he was hungry. He said nothing about an agreement, and nothing in his manner suggested he believed he was performing one.

5. Discovery

On **15 April 2026** my father stated for the first time that the doughnut had carried a term concerning his soul. He appeared to be learning it rather than recalling it.

Odile Cruller

Subscribed and sworn before me: _____